

LAW OF TORTS, MOTOR ACCIDENT CLAIMS AND CONSUMER PROTECTION

MODULE 1:

General Principles of Tort

- 1.1 Tort: Definition, Nature, Scope and object of Tort, Tort in India.
- 1.2 Distinction from Crime, Breach of Contract etc., who may sue, who may not be sued.
- 1.3 Damnum Sine Injuria, Injuria Sine Damnum
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1.1 Tort: Definition, Nature, Scope and object of Tort, Tort in India.

A. INTRODUCTION:

1. The Tort is of French origin. The root is 'Tortum' in Latin which means 'twist'. It implies a conduct which is 'tortious', or, twisted.. The equivalent word in English is "Wrong". In Roman it is "delict" and in Sanskrit it is "Jimha" which means 'crooked'.

Definition of Tort

The term tort is the French equivalent of the English word 'wrong' and of the Roman law term 'delict'. The word tort is derived from the Latin word tortum which means twisted or crooked or wrong and is in contrast to the word rectum which means straight. Everyone is expected to behave in a straightforward manner and when one deviates from this straight path into crooked ways he has committed a tort. Hence tort is a conduct which is twisted or crooked and not straight. As a technical term of English law, tort has acquired a special meaning as a species of civil injury or wrong. It was introduced into the English law by the Norman jurists.

Tort now means a breach of some duty independent of contract giving rise to a civil cause of action and for which compensation is recoverable. In spite of various attempts an entirely satisfactory definition of tort still awaits its master. In general terms, a tort may be defined as a civil wrong independent of contract for which the appropriate remedy is an action for unliquidated damages. Some other definitions for tort are given below:

Winfield and Jolowicz- Tortious liability arises from the breach of a duty primarily fixed by law; this duty is towards persons generally and its breach is redressible by an action for unliquidated damages.

Salmond and Hueston- A tort is a civil wrong for which the remedy is a common action for unliquidated damages, and which is not exclusively the breach of a contract or the breach of a trust or other mere equitable obligation.

Sir Frederick Pollock- Every tort is an act or omission (not being merely the breach of a duty arising out of a personal relation, or undertaken by contract) which is related in one of the following ways to harm (including reference with an absolute right, whether there be measurable actual damage or not), suffered by a determinate person:-

- a) It may be an act which, without lawful justification or excuse, is intended by the agent to cause harm, and does cause the harm complained of.
- b) It may be an act in itself contrary to law, or an omission of specific legal duty, which causes harm not intended by the person so acting or omitting.
- c) It may be an act violation the absolute right (especially rights of possession or property), and treated as wrongful without regard to the actor's intention or knowledge. This, as we have seen is an artificial extension of the general conceptions which are common to English and Roman law.
- d) It may be an act or omission causing harm which the person so acting or omitting to act did not intend to cause, but might and should with due diligence have foreseen and prevented.

e) It may, in special cases, consist merely in not avoiding or preventing harm which the party was bound absolutely or within limits, to avoid or prevent.

Nature of Torts

A. Tort and crime

Historically tort had its roots in criminal procedure. Even today there is a punitive element in some aspects of the rules on damages. However tort is a species of civil injury or wrong. The distinction between civil and criminal wrongs depends on the nature of the remedy provided by law. A civil wrong is one which gives rise to civil proceedings. A civil proceeding concerns with the enforcement of some right claimed by the plaintiff as against the defendant whereas criminal proceedings have for their object the punishment of the defendant for some act of which he is accused. Sometimes the same wrong is capable of being made the subject of proceedings of both kinds. For example assault, libel, theft, malicious injury to property etc. in such cases the wrong doer may be punished criminally and also compelled in a civil action to make compensation or restitution.

Not every civil wrong is a tort. A civil wrong may be labeled as a tort only where the appropriate remedy for it is an action for unliquidated damages. Thus for example, public nuisance is not a tort merely because the civil remedy of injunction may be available at the suit of the attorney general, but only in those exceptional cases in which a private person may recover damages for loss sustained by him in consequence thereof. However it has to be born in mind that a person is liable in tort irrespective of whether or not an action for damages has been given against him. The party is liable from the moment he commits the tort. Although an action for damages is an essential mark of tort and its characteristic remedy, there may be and often other remedies also.

Scope of Tort Law

The main aim of implementing tort law was to use it as a tool to make people to follow the behavior of a reasonable prudent man and to make them respectful towards each other's rights and duties. In order to achieve its aim law of torts allows the victim to claim compensation for the infringement of his right.

But here it is needed to be mentioned that only certain accepted pattern of behavior is recognized by law which when infringed by others becomes redressal under tort law. Hence all expectations of individuals or group of individuals are not redress able as only recognized interests are protected by law. Thus to summaries the scope of tort one can conclude that every wrongful act is not a tort. To constitute a tort,

- a) Commission of wrongful act by a person;
- b) The nature of the wrongful act should be such to have a resort to legal remedy and
- c) Unliquidated damages should be the legal remedy for the wrongful act.

I. Wrongful Act

An act becomes a wrongful act if only it violates a legal right of another individual.

In *Rogers v. Ranjendro Dutt*, the Judges opined that the act for which the plaintiff is complaining should be a legal wrongful act. Thus, mere harm in to another person's interest is not sufficient but the act should be in prejudice to his legal right.

'A legal right, as defined by Austin, is a faculty which resides in a determinate party or parties by virtue of a given law, and which avails against a party (or parties or answers to a duty lying on a party or parties) other than the party or parties in whom it resides. Rights available against the world at large are very numerous.

They may be divided again into public rights and private rights. Every right carries a legal duty or obligation to perform some act or refrain from performing an act. Therefore, liability for tort arises, when the wrongful act complained of amounts to either an infringement of a legal private right or a breach or violation of a legal duty.'

II. Damage

Generally, a tort consists of some act done by a person which causes injury to another and for which damages are claimed by the latter against the former. One must have a clear notion with regard to the words damage and damages to understand this.

Ordinarily to convey any loss, injury or if anyone is deprived from anything the word damage is used, whereas damages mean the compensation claimed by the injured party and awarded by the court. Damages are claimed and awarded by the court to the parties.

Objectives Of Law of Torts

1. **Compensation:** Self-evidently, Compensation is one of the most fundamental ideas behind Tort Law. The whole Law of Torts focuses on compensating the victim or the grieved party through various available remedies.
2. **Safeguarding Interests:** Another primary objective that the Law of Torts serves is safeguarding or protecting an individual's interest in his integrity or his property.
3. **Deterrence:** Deterrence theory about law says that the threat or the fear imposed by law will demotivate and discourage people from committing certain acts which are tagged as unlawful. This eventually prevents the further commission of unlawful acts. Although the Law of Torts doesn't penalize the guilty, the unliquidated nature of the damages or the compensation which s/he might have to pay acts as a deterrence.
4. **Vindication:** The Law of Torts provides enough room for dear opportunities to a person who deems himself/herself as innocent to prove the same in front of the court. This gives room for the charges of Libel, Slander, and malicious prosecution.
5. **Scattering Losses:** Law of Torts also aims at being an instrument to distribute the burden of the losses suffered by the plaintiff. The loss incurred by the plaintiff is usually divided between the defendants and the insurance companies (if any, in the facts of the respective case).
6. **Moral Objective:** The Law of Torts also serves the very integral principle of society and one of the founding theories of Law i.e., punishment for misconduct. Complete justice is believed to be delivered in a righteous mode when the wrongdoer gets punished for his unlawful act or is mandated to undo the harm of such acts by any means.

The Law of Torts in India

Under the Hindu law and the Muslim law tort had a much narrower conception than the tort of the English law. The punishment of crimes in these systems occupied a more prominent place than compensation for wrongs. The law of torts in India is mainly the English law of torts which itself is based on the principles of the common law of England. This was made suitable to the Indian conditions appealing to the principles of justice, equity and good conscience and as amended by the Acts of the legislature. Its origin is linked with the establishment of British courts in India.

The expression justice, equity and good conscience was interpreted by the Privy Council to mean the rules of English Law if found applicable to Indian society and circumstances. The Indian courts before applying any rule of English law can see whether it is suited to the Indian society and circumstances. The application of the English law in India has therefore been a selective application. On this the Privy Council has observed that the ability of the common law to adapt itself to the differing circumstances of the countries where it has taken roots is not a weakness but one of its strengths. Further, in applying the English law on a particular point, the Indian courts are not restricted to common law. If the new rules of English statute law replacing or modifying the common law are more in consonance with justice, equity and good conscience, it is open to the courts in India to reject the outmoded rules of common law and to apply the new rules. For example, the principles of English statute, the Law Reform (Contributory Negligence) Act, 1945, have been applied in India although there is still no corresponding Act enacted by Parliament in India.

The development in Indian law need not be on the same lines as in England. In *M.C. Mehta v. Union of India*, Justice Bhagwati said, we have to evolve new principles and lay down new norms which will

adequately deal with new problems which arise in a highly industrialized economy. We cannot allow our judicial thinking to be constructed by reference to the law as it prevails in England or for the matter of that in any foreign country. We are certainly prepared to receive light from whatever source it comes but we have to build our own jurisprudence.

It has also been held that section 9 of The Code of Civil Procedure, which enables the civil court to try all suits of a civil nature, impliedly confers jurisdiction to apply the Law of Torts as principles of justice, equity and good conscience. Thus the court can draw upon its inherent powers under section 9 for developing this field of liability.

In a more recent judgement of Jay Laxmi Salt Works (p) ltd. v. State of Gujarat, Sahai, J., observed: truly speaking the entire law of torts is founded and structured on morality. Therefore, it would be primitive to close strictly or close finally the ever expanding and growing horizon of tortuous liability. Even for social development, orderly growth of the society and cultural refinances the liberal approach to tortuous liability by court would be conducive.

Essential Elements of A Tort

Three essential elements need to be fulfilled to constitute a Tort, they are:

Existence of a Duty of Care

Every individual is bound to follow certain duty imposed upon it by the law of the land to practice certain tutelage and adequate rationale over his acts which might turn out to be harmful to any other individual. Such duty of care needs to be proved in the court to induct the charges of Tort.

Commission or Omission of an Act

To charge a person for Tort, it must be proved that s/he has either committed an act which is contrary and disobliging to the provisions of the law of the land or has failed to do an act which was his/her duty as per the law of the land to do.

Illustration A: 'X' publishes a defamatory statement against 'Y'. The same would lead to the Tortious wrong of Defamation on X's part as the law forbids the publication of defamatory statements against a person.

Illustration B: 'X' fails to set up proper fencing surrounding his garden which has poisonous trees to warn people to stay away from it. A child dies as a consequence of eating fruit from one of the poisonous trees from X's garden.

Here, 'X' failed to perform his reasonable duty of care towards the people which amounts to omission. It'll lead to a Tort.

Legal Injury

To prove that the wrongful act or omission of the defendant is a Tort, the plaintiff must show that such act or omission caused an injury to him. An injury here means violation of a legal right vested in the plaintiff and recognized by the law of the land. The legal maxims 'Injuria sine Damno' and 'Damnum sine Injuria' encapsulate the damage and injury part.

The first maxim, Injuria sine Damno means Injury or infringement of a legal right without any actual Damage i.e. substantial loss suffered by the plaintiff. Mere violation of a legal right or proof of a legal injury is enough to constitute a Tort. The reader can deduce the maxim further from the case of Ashby v. White.[6]

The second maxim, Damnum sine Injuria means damage to the plaintiff in absence of a legal injury or violation of any legal right. A case for Tort cannot be made up in absence of a legal injury. The Gloucester Grammar School case[7] can be referred to understand the maxim to its bottom.

Legal Remedy

As the last condition to constitute a Tort, the unlawful act or omission of the defendant must fall under a category of unlawful acts which have a civil action for damages as their remedy. The law of torts bases itself on the maxim, 'Ubi jus ibi remedium' which means

'where there's a right, there's a remedy. The remedy required to constitute a Tort can be action for damages, injunctions, restitution actions, or equitable remedies (specific performance).

The court applies certain tests such as the test of foresee ability, the test of directness, etc. before determining the remedies to be awarded in a case. The nature of the damages is unliquidated.

1.2 Distinction from Crime, Breach of Contract etc., who may sue, who may not be sued.

a. Distinction between Crime and Breach of Contract

(1) In crime, the injured party cannot sue for damages. The injury to the victim is deemed as an injury to the society. It is the violation of public right. Hence the State prosecutes the accused. The burden of proof lies upon the State. If the wrongful act is proved, the accused is put in imprisonment or imposed fine, or both. Such fine is not paid to the victim. It is credited into the State's account. But, in case of breach of contract, the injured party has right only for liquidated damages i.e. presettled or actual damages.

(2) The object of the criminal law is to project the peace of the society, while the object of law on the breach of contract is to protect the rights of the parties in a contract.

(3) Mens rea (ill intention) is an important factor in imposing the Criminal liability upon the wrong-doer where-as, in breach of contract, the motive is not an essential factor. The defaulting party has to pay the pre-settled and actual damages.

(4) A wrongful act is an infringement of right in rem. The wrongdoer has a 'Duty in rem' i.e., he should not do harm or injury to any person. It is a statutory duty. But, a breach of contract is an infringement of a right in personam i.e., a right available only against some determinate person or body and for which the community at large has no concern.

(5) The Criminal law which deals with crimes and offences is a separate branch, whereas breach of contract is a species of law of contract, which belongs to civil law.

(6) The criminal law is completely codified one while the law relating to contracts considers certain trade customs, though it has been codified.

(7) In crime, the victims are not paid damages. The accused is sent to jail or imposed fine or both. The fine goes to the State. However, in breach of contract, the party is entitled only for actual damages.

b. who may sue, who may not be sued.

Introduction

In the concept of a tort, usually a person who suffers injury has a right to file a case against the person who caused him harm, but there are certain categories of people who cannot sue a person for their loss and also there are some people who cannot be sued by any person.

So, the question arises why these categories of people are restricted from filing a case and also why do certain people are protected from such suits.

Who can/can not Sue?

Who can sue?

Any rational person including businessman, organisation, government and other individuals can sue, provided that, they are of sound mind and are not disqualified by law.

Who cannot sue?

There are seven categories of persons cannot sue, only subject to certain limitations:

An Alien enemy

Convict

Bankrupt

Husband and wife

Corporation

An Infant/Minor

A foreign state